

25STCV23558 25STCV23558

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Case Number: 25STCV23558 Hearing Date: September 18, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:12 PM on September 17, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 17, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

alleges that he was subjected to sexually harassing comments by two supervisors and Defendant City of Los Angeles did nothing to prevent such harassment from continuing.

Defendant

City of Los Angeles demurs to the First Amended Complaint.

TENTATIVE RULING

Defendant

City of Los Angeles' demurrer to First Amended Complaint is SUSTAINED without leave to amend as to the second cause of action, unless Plaintiff can demonstrate a reasonable possibility of successful amendment. Otherwise, Defendant is to answer the remaining allegations of the First Amended Complaint within 10 days.

ANALYSIS

Meet and Confer

The

Declaration of Warren M. Williams reflects that Defendant's counsel satisfied the meet and confer requirement set forth in Civ. Proc. Code, § 430.41.

Discussion

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendant

City of Los Angeles demurs to the First Amended Complaint as follows:

1. Second

Cause of Action (Retaliation in Violation of FEHA—Gov. Code § 12940 et seq.)

Defendant

argues that what Plaintiff complains of is a failure to act on complaints of harassment, which is not an adverse employment action.

Plaintiff

argues that, taken together, Defendant's toleration of harassment amounts to an adverse employment action.

Defendant

argues that simply labeling something retaliatory does not make it so.

Defendant

cites the California Supreme Court's opinion in *Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611. The Court agrees that the principles set forth therein lead to the conclusion that Plaintiff has not pled actionable retaliation under the FEHA.

It is unlawful for an employer to "discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part." (§ 12940, subd. (h).) This type of unlawful employment practice is known simply as "retaliation." (Citation omitted.) To establish a *prima facie* case of retaliation under FEHA, an employee must show that (1) she engaged in a "protected activity," (2) the employer subjected her to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. (*Ibid.*)

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...

The phrase "adverse employment action" does not appear in FEHA but "has become a familiar shorthand expression referring to the kind, nature, or degree of adverse action against an employee that will support a cause of action under a relevant provision of an employment discrimination statute." (Citation omitted.) We have held that the language of section 12940, subdivision (h)—making it unlawful to "discharge, expel, or otherwise discriminate against" an employee—refers to and encompasses the same forms of adverse employment actions that are actionable in FEHA discrimination claims under section 12940, subdivision (a). (Citation omitted.) Thus, for both discrimination and retaliation claims, an adverse employment action is one that "materially affects the terms, conditions, or privileges of employment." (*Id.* at p. 1051.)⁸

Although "a mere offensive utterance or even a pattern of social slights by either the employer or coemployees" is not actionable, "the phrase 'terms, conditions, or privileges' of employment must be interpreted liberally and with a reasonable appreciation of the realities of the workplace in order to afford employees the appropriate and generous protection against employment discrimination that the FEHA was intended to provide." (Citation omitted.) "Minor or relatively

trivial adverse actions or conduct by employers or fellow employees that, from an objective perspective, are reasonably likely to do no more than anger or upset an employee cannot properly be viewed as materially affecting the terms, conditions, or privileges of employment and are not actionable . . .” (Citation omitted.) But adverse treatment that is reasonably likely to impair an employee’s job performance or prospects for advancement in their career falls within the reach of FEHA’s antiretaliation provision. (Citation omitted.)

We have recognized that “[r]etaliation claims are inherently fact-specific, and the impact of an employer’s action in a particular case must be evaluated in context,” considering “the unique circumstances of the affected employee as well as the workplace context of the claim.” (Citation omitted..) “[T]he significance of particular types of adverse actions must be evaluated by taking into account the legitimate interests of both the employer and the employee.” (Citation omitted.) Additionally, the alleged retaliatory acts are to be considered “collectively,” rather than individually. (Citation omitted.) Retaliatory acts may take the form of “a series of subtle, yet damaging, injuries,” and “[e]nforcing a requirement that each act separately constitute an adverse employment action would subvert the purpose and intent of the statute.” (Citation omitted.)

(Bailey v. San Francisco Dist. Attorney’s Office (2024)
16 Cal.5th 611, 638 [bold emphasis added].)

Critically, this course of conduct was undertaken, not by a coworker, but by the human resources manager responsible for receiving complaints of harassment and discrimination in the workplace. It bears repeating that the opportunity to seek, obtain, and hold employment without discrimination because of race is a civil right. (§ 12921, subd. (a).) A reasonable trier of fact could find that Taylor-Monachino’s course of conduct, in light of her position, effectively sought to withdraw Bailey’s means of reporting and addressing workplace discrimination and harassment. This is not a “[m]inor or relatively trivial” action that does no more than anger or upset the affected employee. (Citation omitted.) Rather, the withdrawal of an employee’s right to avail themselves of the HR process typically available to other employees materially affects the “terms, conditions, or privileges” of their employment. (Citations omitted.) Such treatment is reasonably likely to impair the affected employee’s job performance insofar as it leaves them unprotected from the very harms FEHA was designed to eliminate. Pointed threats compounded the harm of Taylor-Monachino’s conduct. (Citation omitted.)

To be clear, our opinion today does not hold that an employer's mere inaction (e.g., the failure to investigate a claim of racial harassment or take corrective action)—which separately may bear on the employer's liability for the harassment itself—constitutes an act of retaliation. Had the City merely failed to further investigate Larkin's alleged harassment following Bailey's report of the same on January 29, no actionable retaliation would appear. The instant claim of retaliation, however, is not based on mere inaction. It is based on an HR manager's purposeful obstruction of Bailey's complaint, which included an admonition that Bailey might create a hostile work environment for her harasser if she persisted. And it is based on Taylor-Monachino's escalating threats in August, when she mouthed the words, "you are going to get it." Though ultimately it is for a jury to decide whether Taylor-Monachino's conduct rises to the level of an adverse employment action in this case, such conduct could be understood as quintessentially retaliatory. That is, it appears designed to punish Bailey for engaging in protected activity (i.e., pursuing her complaint of harassment) and threatens further punishment should she persist. Where a supervisor or other person of authority obstructs and threatens to punish a reporting employee if she persists in bringing a complaint to higher level officials, such acts may be considered by a jury to constitute actionable retaliation.

(Bailey *supra*, 16 Cal.5th at 639-40 [bold emphasis and underlining added].)

The Court addresses the alleged retaliatory acts identified by Plaintiff in the opposition:

⌋ Retaliatory

Act No 1: "In retaliation, Lt. Clancy failed to follow the LAPD manual and abide by the alleged zero tolerance policy to initiate the required personnel complaint which could have prevented future harassing conduct which Plaintiff faced." (FAC at ¶ 22)

This is mere inaction in the form of failure to initiate a personnel complaint as required by the LAPD zero tolerance policy. This is not retaliation. ((Bailey *supra*, 16 Cal.5th at 639-41.)

⌋ Retaliatory

Act No 2: "Lt. Clancy was essentially condoning and creating an ongoing hostile

work environment for Plaintiff. Failing to properly investigate was in addition to forcing Plaintiff to endure the hostile work environment. The tolerance in allowing the sexual harassment and hostile work environment to persist altered the conditions of Plaintiff's employment such that it was further adverse employment action." (FAC at ¶ 22)

Again, this

is mere inaction in the form of failure to investigate or address the alleged hostile work environment. This is not retaliation. ((Bailey supra, 16 Cal.5th at 639-41.)

⌋ Retaliatory

Act No 3: "Throughout, the Department failed to take proper precautionary measures, take corrective actions, or properly discipline or separate the Lieutenants from Plaintiff, thereby encouraging their behavior and subjecting Plaintiff to harm." (FAC at ¶ 23)

Again, this

is mere inaction in the form of failure to investigate or address the alleged hostile work environment. This is not retaliation. ((Bailey supra, 16 Cal.5th at 639-41.)

⌋ Retaliatory

Act No 4: "Due to the lack of any appropriate response, the sexual harassment and hostile work environment continued. From July through August 2024, Lt. Cornwell discussed with Plaintiff how she was dating a new real estate guy and in doing so she went into detail about their specific sexual exploits. Talking about sexual exploits in Plaintiff's presence was further sexual harassment. Plaintiff was uncomfortable with this conversation from his supervisor." (FAC at ¶ 24)

and

⌋ Retaliatory

Act No 5: "From June -August 2024, Lt. Cornwell, further sexually harassed Plaintiff by making comments stating that Plaintiff looked good for his age and asked on various occasions why he didn't ask her out, or why Plaintiff hasn't "thrown it at her." Plaintiff was uncomfortable with this conversation from his supervisor. During this time, she said she prefers to date men in their 30's and Plaintiff may be too old for her. Plaintiff never asked her out or flirted with her." (FAC at ¶ 25)

and

¿ Retaliatory

Act No 6: “From June- September 2024, Lt. Cornwell knew Plaintiff played golf and continued the harassment and would ask Plaintiff to come help her with her swing off duty. She asked Plaintiff if they could play together and after a round they should hit up the 19th hole to have drinks. Plaintiff was uncomfortable with this conversation from his supervisor. Plaintiff never accepted these advances, but Lt. Cornwell would persist.” (FAC at ¶ 26)

These are

actions by Lt. Cornwell who were engaging in interpersonal behavior which was not an official action by the City as employer that constitutes an adverse employment action.

Our precedent explains that the primary difference between discrimination claims and harassment claims is that discrimination claims “address[] only explicit changes in the ‘terms, conditions, or privileges of employment’ [citation]; that is, changes involving some official action taken by the employer.” (Citation omitted.) “In the case of an institutional or corporate employer, the institution or corporation itself must have taken some official action with respect to the employee, such as hiring, firing, failing to promote, adverse job assignment, significant change in compensation or benefits, or official disciplinary action.” (Ibid.)

(Pollock v. Tri-Modal Distribution
Services, Inc. (2021) 11 Cal.5th 918, 931-32.)

¿ Retaliatory Act No 7: “In further retaliation,

Plaintiff was threatened by one of the Lieutenants who warned that she had “friends in high places,” fueling Plaintiff’s worries about future retaliation.” (FAC at ¶ 28)

and

¿ Retaliatory

Act No 8: “In further retaliation, on or about November of 2025, Lt. Darcy Cornwell initiated a baseless misconduct complaint against Plaintiff attempting to use the Department’s personnel complaint system as a weapon against Plaintiff for his prior engagement in protected activity against her exposing her sexual harassment. Lt. Cornwell’s baseless misconduct complaint was unfounded.” (FAC at ¶ 30)

There is no

allegation that this veiled threat by one of the Lieutenants or the misconduct complaint filed by Lt. Cornwell was an official action by the City as employer that constitutes an adverse employment action. (Pollock, *supra*, 11 Cal.5th at 931-32.)

¿ Retaliatory

Act No 9: "In further retaliation, Plaintiff has been ostracized since his reporting and subjected to ongoing isolation. Many co-workers no longer speak to Plaintiff in the same way and look down upon Plaintiff for making a sexual harassment complaint as a male. Co-workers feel they can no longer trust Plaintiff after Plaintiff reported the sexual harassment." (FAC at ¶ 31)

Ostracization

by co-workers is not an actionable adverse employment action:

Although "a mere offensive utterance or even a pattern of social slights by either the employer or coemployees" is not actionable, "the phrase 'terms, conditions, or privileges' of employment must be interpreted liberally and with a reasonable appreciation of the realities of the workplace in order to afford employees the appropriate and generous protection against employment discrimination that the FEHA was intended to provide." (Yanowitz, *supra*, 36 Cal.4th at p. 1054.) "Minor or relatively trivial adverse actions or conduct by employers or fellow employees that, from an objective perspective, are reasonably likely to do no more than anger or upset an employee cannot properly be viewed as materially affecting the terms, conditions, or privileges of employment and are not actionable . . ." (Id. at p. 1054.) But adverse treatment that is reasonably likely to impair an employee's job [*638] performance or prospects for advancement in their career falls within the reach of FEHA's antiretaliation provision. (Yanowitz, at pp. 1054–1055.)

(Bailey v. San Francisco Dist. Attorney's Office (2024)

16 Cal.5th 611, 637-38 [bold emphasis added].)

¿ Retaliatory

Act No 10: "Despite Plaintiff's complaints regarding the subject Lieutenants, sexual harassment and/or retaliation, and corroboration from other supervisors, the Department continued their own retaliation against Plaintiff by failing to properly investigate" (FAC at ¶ 32)

Again, this

is mere inaction in the form of failure to investigate or address the alleged hostile work environment. This is not retaliation. ((Bailey supra, 16 Cal.5th at 639-41.))

¿ Retaliatory

Act No 11: “failing to” “ properly punish these Lieutenants as required.” (FAC at ¶ 32)

Again, this

is mere inaction in the form of failure to investigate or address the alleged hostile work environment. This is not retaliation. ((Bailey supra, 16 Cal.5th at 639-41.))

The

foregoing list of alleged non-actionable conduct does not become an adverse employment action simply because Plaintiff lists them in series. What Plaintiff complains of is the failure to prevent harassment, which is a separate violation of the FEHA and is already pled in the third cause of action. “The FEHA makes it a separate unlawful employment practice for an employer to “fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring.” (§ 12940, subd. (k).)” (State Dept. of Health Services v. Superior Court (2003) 31 Cal.4th 1026, 1040.) “The employer’s duty to prevent harassment and discrimination is affirmative and mandatory.” (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 288.)

For

the foregoing reasons, the demurrer to the second cause of action is SUSTAINED without leave to amend, unless Plaintiff can demonstrate a reasonable possibility of successful amendment. Otherwise, Defendant is to answer the remaining allegations of the First Amended Complaint within 10 days.